



The Landing Blue, MediaCityUK
Salford, Greater Manchester
M50 2ST

Henderson Nguyen

p./k/a The Theorist
31 Peer Crt.,
Ancaster, Ontario,
L9K0C5
CANADA

Date: **18th March 2021**

Dear Henderson,

We write to confirm our agreement with you as follows:

1. We engage you to provide your services and you accept such engagement to provide your non-exclusive services to record, produce, mix and master first class master recordings featuring your performance on piano of the following:

Wonderwall / Oasis (piano cover)
Heartbreak Anniversary / Giveon (piano cover)

All such recordings which are recorded and produced, mixed and mastered by you under this Agreement are referred to as the "Masters". In respect of each of the Masters you shall, unless agreed to by us with you to the contrary in writing, deliver the following:

- (i) a technically satisfactory master mix so that they are in a proper form for production of the parts necessary for the manufacture of records;
- (ii) each and every original multi track session file and copies of all final recorded elements;
- (iii) all stems;
- (iv) 24 bit WAV or AIFF files;
- (v) all work or file copies used during recording;
- (vi) safety copies of each of the foregoing stored in a different format to the original; and
- (vii) all other materials reasonably required by us.

(referred to in this Agreement as the "Delivery Materials").

2. You shall deliver all of the Delivery Materials in respect of the Masters in a technically satisfactory, edited, mastered and equalised form to us by no later than 30th April 2021, in respect of which time shall be of the essence.
3. You shall pay all recording, production, mixing and masterinf costs in respect of the Masters and any and all remuneration due to any third party used by you and you will ensure that all necessary consent forms are duly signed by any such third parties so as to enable us to fully exploit the Masters without liability or payment to them. You shall not include any so-called

samples (whether of musical and/or literary works and/or sounds) in the Masters without our prior written consent.

4. All aspects of the production, mixing and mastering of the Masters shall be subject to our reasonable good faith approval. You shall not incur any liability or hold yourself out as being authorised to incur any liability on our part whatsoever.
5. All recordings recorded and/or produced, mixed and mastered by virtue of this Agreement, all copies and derivatives of them, all production parts therefrom, and all records manufactured from them, together with the performances embodied in them (but, for the avoidance of doubt, excluding the underlying compositions), shall be our sole property from the inception of recording, free from any claims or encumbrances whatsoever by you or any other party. We shall be the exclusive owner of the copyright and all other rights of similar nature in and to all such recordings (but excluding the underlying compositions) in our name as the owner thereof (and we shall be exclusively entitled to secure any and all renewals and extensions of such copyright and other such rights, wherever and whenever available) throughout the world and the solar system (the "Territory").
6. In consideration of the payment by us to you of the sum of one pound (£1) and other good and valuable consideration (the receipt and sufficiency of which you hereby acknowledge) you irrevocably and unconditionally to the fullest extent permitted by law:
 - (i) assign to us (by way of assignment of present and future copyright) with full title guarantee all the copyright and other rights (whether now known or in the future created and including without limitation performer's property rights) in and to the Masters and the products of your services under this Agreement to hold to us absolutely without reservation for the use and benefit of us and our successors, assigns and licensees throughout the Territory for the full period of copyright including all renewals, reversions and extensions;
 - (ii) give all such consents as may be necessary to enable us to use and/or exploit the Masters and/or any of the products of your services under this Agreement and to authorise others to use and/or exploit the same throughout the Territory in any and all media by any and all means now known or developed in the future;
 - (iii) waive and/or agree not to assert and shall procure that any third party used by you waives and agrees not to assert as against us and/or our assigns and/or licensees all so-called "moral rights" or similar rights now existing or created in the future in any part of the Territory in respect of the Masters and the product of your services under this Agreement and you agree that you will not and shall procure the the aforesaid third parties (if any) shall not make any claim against us or any party authorised by us to exploit the Masters based on such moral or similar rights; and
 - (iv) grant to us the exclusive rental and lending rights in and to the Masters and all of the products of your services under this Agreement which you may have at the date hereof, or which may after the date hereof be conferred on you, whether pursuant to the Copyright and Related Rights Regulations 1996 or otherwise.
7. In further consideration of you fully performing your obligations hereunder we agree to pay you fifty per cent (50%) of our Net Receipts in respect of net sales of records and digital distribution in the Territory of the Masters:

"Net Receipts" means Gross Income less (a) a distribution fee of no more than 15% of the sales price (net of any sales tax) reported to us in respect of all digital exploitation of the Masters and of no more than the distribution fee incurred by us in respect of any physical

exploitation of the Masters (e.g. vinyl records and CDs) and (b) any and all costs and expenses incurred or to be incurred by us in marketing and promotion of the Masters, any physical manufacturing costs, copyright payments and any artwork costs.

“Gross Income” means all monies, fees and royalties actually received by us in the UK solely and identifiably from the exploitation of the Masters less VAT and any similar sales taxes but excluding the owner’s/label share of any collection society or performance income such as from PPL.

8. Neither we nor any third party authorised by us to exploit the Masters shall be obliged to make any payments of any nature for or in connection with the acquisition, exercise or exploitation of any rights granted to us hereunder, except as specifically provided in this Agreement.
9. You shall not have any entitlement to the so-called “label share” of PPL, SoundExchange or any similar payments but you shall, where you qualify for the registration in accordance with the rules of the relevant societies in respect of the Master, be entitled to register as an eligible studio producer and as a “non-featured” performer in respect of the “performer’s share” of PPL or any similar payment if in accordance with and subject to the rules of the relevant societies.
10. You shall be accounted to on a monthly basis (every 30 days) and receive royalty statements and applicable payments within 90 days of each statement sent to you, provided that we may retain reasonable reserves against anticipated returns. We shall not be liable to account to you in respect of accounting periods in respect of which less than one hundred pounds (£100) is payable to you by way of royalties. You shall have the right to inspect our books and records of account but not more than once per year and no more than once in respect of any statement and provided that such statements shall become final and binding upon you unless your specific written objection to such statements shall be received by us within three (3) years after the date on which such statement shall have been rendered to you. If any such inspection of our books and accounts shall reveal an agreed underpayment then we shall credit the amount of such underpayment to your account and if any such underpayment shall exceed the greater of (i) ten per cent (10%) of the amount which was properly due to you and (ii) five thousand pounds (£5,000) then in addition to paying the relevant agreed underpayment we shall also reimburse you for the reasonable costs of the relevant inspection (excluding travel, subsistence costs and accommodation costs) and up to a maximum of one thousand and five hundred pounds (£1,500) (in aggregate where you audit across more than one agreement at the same time). If we undertake an audit or inspection of our licensee’s books and records and as a result of such audit our licensee agrees to credit our account with a payment which is directly and identifiably attributable to the Masters then we will credit your account with a proportionate share thereof. You acknowledge that the account of royalties may be affected by withholding tax and foreign exchange tax regulations. We shall afford you reasonable assistance in attempting to obtain any appropriate tax credits hereunder and in any event if we receive a tax credit (and are able to utilise the same) or refund in respect of any taxes withheld then if we have previously made a deduction as aforesaid in respect of payments due to you in relation to the income to which such tax credit relates then we will credit the same (or a proportionate share thereof) to your royalty account hereunder.
11. We shall have the non-exclusive right (but not obligation) to use and authorise others to use your name, approved photographs, approved likenesses and approved biographical material related to you solely in connection with our exploitation of the Masters and/or the products

- of your services under this Agreement (your approval not to be unreasonably withheld or delayed and deemed given in respect of such materials supplied by you and/or on your behalf).
12. You agree, as a material term of this Agreement, to facilitate the promotion of the Masters by posting promotional items concerning the Masters, and any playlists operated by us that include the Masters, in full consultation with us, on your social media platforms such as, but not limited to, Instagram, YouTube and Facebook.
13. You hereby warrant that:
- (i) you are entitled to enter into this Agreement and to grant to us the rights granted to us in it;
 - (ii) you are not a minor;
 - (iii) none of your contributions to the Masters nor any material embodied thereon (to the extent of your contributions to them) will violate or infringe any common law or statutory right of any person including, but without limitation, contractual rights and copyright and without prejudice to the generality of the foregoing you have not introduced any so-called "samples" into the Masters;
 - (iv) you will not re-record or re-produce or re-mix or re-engineer the Masters or any of the compositions embodied thereon for any person or company other than us until the date which is five (5) years following the date hereof;
 - (v) you have paid for any and all costs in connection with the recording, production, mixing and Mastering by you of the Masters and you shall not purport to have any authority to assume any liability on our behalf in respect of any such costs; and
 - (vi) you have not contributed to the compositions embodied on the Masters nor do you or they have any rights in any of them.
14. You indemnify us against all third party costs, expenses, liabilities, claims, proceedings and damages (including reasonable third party out-of-house legal costs) actually paid by us pursuant to a third party claim which is caused by a breach or alleged breach by the you of your agreements, warranties and representations in this Agreement. The aforesaid indemnity is without prejudice to any other right or remedy of ours in respect of any breach by you of this Agreement. We shall be entitled to retain any monies otherwise payable to you hereunder in a sum in our reasonable opinion sufficient to cover our potential liability under this indemnity.
15. No modification, amendment or waiver of this Agreement or any provisions of it shall be binding upon either party unless confirmed in writing under our respective hands or in the hands of our respective duly authorised representatives.
16. You acknowledge and accept that your rights and remedies in the event of a breach of this Agreement by us shall be limited to your right, if any, to recover damages in action at law and in no event shall you be entitled by reason of any breach to injunct, enjoin, restrain, or to seek to injunct, enjoin or restrain or seek any other form of equitable relief preventing the exploitation or distribution of the Masters or any associated materials.
17. If any provision of this Agreement should be held to be invalid or in any way unenforceable it shall be to that extent severed and the remaining provisions shall not in any way be affected or impaired and this Agreement shall be construed so as to give effect to the intent of the parties and, to the extent possible, this Agreement shall continue to govern their mutual rights and obligations notwithstanding severance.

18. We shall be free to assign, sub-licence or otherwise deal with the whole or any part of the Masters and/or the rights granted to us hereunder as we see fit. We shall be free to assign our obligations hereunder to a third party provided that we shall remain primarily liable to you until such time as the assignee enters into a direct covenant with you to fulfil all of our obligations to you hereunder. You shall not be entitled to assign your rights or obligations under this Agreement and any such purported assigned shall be invalid.
19. All notices to be given by either party hereunder shall be in writing and shall be delivered by hand (against signature on receipt), sent by certified mail, postage prepaid (return receipt requested), or by overnight delivery (with signature) by an established overnight delivery service to the address of each party as first set forth above until notice of a new address shall be duly given. Courtesy copies of all notices to us hereunder shall be sent to Bray & Kraiss, Solicitors, Suites 9 & 10, Fulham Business Exchange, The Boulevard, Imperial Wharf, London SW6 2TL provided that a failure to do so shall not be deemed a breach hereof nor impair the effectiveness of the notice concerned.
20. This Agreement may be executed and delivered in any number of counterparts, each of which is an original and which together have the same effect as if each party had signed the same document. Transmission of an executed counterpart of this Agreement (but for the avoidance of doubt not just a signature page) by e-mail (in PDF and/or JPEG format) shall take effect as delivery of an executed counterpart of this Agreement. No counterpart shall be effective until each party has executed at least one counterpart.
21. This Agreement shall be read and construed under English Law and subject to the exclusive jurisdiction of the English courts.
22. All sums payable to you are exclusive of VAT which shall be payable in addition if applicable and legally due (and subject to receipt of a valid VAT invoice).

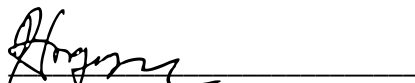
Agreed and accepted



For and on behalf of

Ostereo Limited

(operating under the brand name "Pedals & Keys")



Signed by

Henderson Nguyen (p/k/a The Theorist)